

the description to be adapted to the claims found allowable. With regard to Art. 11 RPBA 2020, the board noted that remittal of a case for adaptation of the description was not a remittal for "further prosecution", such that no "special reasons" needed to be present (see also T 801/18).

9.10. Remittal to a differently composed department of first instance

In T 2475/17 the board dealt with the issue of a board's power to order a different composition of a department of first instance when remitting a case to it.

Whether a case can be remitted to a differently composed department of first instance when the original first-instance decision is found to be vitiated by a substantial procedural violation is dealt with in detail, in the context of suspected partiality of members of the departments of first instance, in chapter III.J.4.2 "Remittal and rehearing of a case".

10. Binding effect of decision remitting case to department of first instance

10.1. Notion of res judicata

Art. 111(2) EPC provides that, where a board of appeal remits a case to the EPO department of first instance whose decision was appealed, that department is bound by the board's ratio decidendi, in so far as the facts are the same. If the decision under appeal was taken by the Receiving Section, the examining division is also bound by the board's ratio decidendi.

The boards' decisions generally acquire the authority of "res judicata" on being issued. While the EPC does not expressly refer to "res judicata", it is a generally recognised principle in the contracting states that is acknowledged by the boards of appeal (see e.g. T 167/93, OJ 1997, 229; J 3/95, OJ 1997, 493; T 365/09, T 449/15). It means a matter finally settled by a court of competent jurisdiction, rendering that matter conclusive as to the rights of the parties and their privies, such a final judgment constituting an absolute bar to a subsequent legal action involving the same claim, demand or cause of action, and the same parties or their privies (T 934/91, OJ 1994, 184; see also T 1666/14).

The boards have assumed in several decisions (T 934/91, T 113/92, T 843/91 of 5 August 1993, OJ 1994, 832, T 609/94, J 8/98 and T 694/01) that their decisions are final. In practical terms, that at the very least means that a board's decision on the version of a patent is binding on the department of first instance and that, therefore, this version can no longer be amended in proceedings before the EPO (for more details on this point, see T 2558/18).

A decision's binding effect under Art. 111(2) EPC applies only to the case decided on (J 27/94, OJ 1995, 831). Art. 111 EPC does not provide for such binding effect for cases not decided by the boards, although there will generally be good reasons for departments of first instance to follow their decisions in order to maintain a consistent practice and avoid unnecessary appeals.

The authority of *res judicata* binds the administrative department dealing with the same application in the subsequently resumed examination proceedings (see Art. 111(2) EPC) and indeed the board in any fresh appeal against the then ensuing examination decision. By contrast, a decision taken on appeal in examination proceedings has no such binding effect in any subsequent opposition proceedings or on appeal against the opposition division's decision because opposition proceedings are separate and distinct from examination proceedings (especially in that different parties are involved) and differ from them in terms of the nature of the public interest involved (T. 1666/14).

The ratio decidendi of a decision under Art. 111(2) EPC 1973 is the ground or the reason for making it – in other words, the point in a case which determines the outcome of the judgment (T. 934/91, OJ 1994, 184). It is not contained in the order but in the section "Reasons for the Decision" and it is thus of no importance for its binding effect that a particular matter is not mentioned in the order (T. 436/95). The order of a board's decision provides a first point of reference for establishing the extent to which *res judicata* applies. However, where a case is remitted for further prosecution on the basis of claims of auxiliary requests following rejection of higher-ranking claim requests, the order is usually confined to the setting aside of the decision under appeal and the remittal for further prosecution. Thus, the order has to be seen in context with the reasons for the decision as a whole in order to determine the extent to which the decision is final (T. 449/15).

10.2. Department of first instance bound by decision of board of appeal

Under Art. 111(2) EPC, the EPO department of first instance whose decision was appealed is bound by the ratio decidendi of the board of appeal if the case is remitted to it.

10.2.1 Binding effect on examining divisions

The board in T. 366/92 pointed out that according to Art. 111(2) EPC 1973 the examining division was bound by the board's decision only to the extent that it had been decided that the subject-matter of Claim 1 was novel when compared with the prior art known from D2 and that the claim met the requirements of Art. 84 and 123(2) EPC 1973. See also T. 255/92.

In T. 2558/18, the board dealt with the binding effect on an examining division of a remittal with precisely specified documents for the purposes of R. 71(3) EPC. It observed that, under Art. 111(1), second sentence, EPC, a board could either exercise any power within the competence of the department which was responsible for the decision appealed (alternative 1) or remit the case to that department for further prosecution (alternative 2). In its catchword, the board summarised as follows: where a board remits a case to the examining division for the grant of a patent in a precisely specified version, i.e. with precisely specified claims, description and drawings, the decision on this version is taken by virtue of the first alternative in Art. 111(1), second sentence, EPC. The version is binding on the examining division in accordance with the legal principle enshrined in Art. 111(2) EPC (*res judicata*), on the basis of which the remittal is also ordered. The procedure under R. 71(6) EPC is inapplicable in view of the binding effect arising from Art. 111(2) EPC by virtue of Art. 164(2) EPC.

10.2.2 Binding effect on opposition divisions

When after remittal the proprietor files new requests which require examination to be reopened on issues that have already been judged upon by the board of appeal, without the justification that might be provided, for example, by the proprietor's being faced with a new situation, then such requests should be deemed inadmissible (T.383/11).

In T.308/14 the board held that if a case is remitted to the opposition division in appeal proceedings, after the board has taken a decision under Art. 84 EPC on the clarity of a certain feature in a claim, this decision is *res judicata* and thus binding on the opposition division in the subsequently resumed opposition proceedings. The binding effect did not only cover the decision on Art. 84 EPC as such; it also extended to any finding of fact that led to this decision. Therefore, if in the resumed opposition proceedings an insufficiency objection is made under Art. 83 EPC on the basis that this very feature was ambiguous (insufficiency arising out of ambiguity), the opposition division should not reopen the discussion on whether this feature is clear, and should accept any finding of fact that the board made in arriving at its decision on Art. 84 EPC.

According to T.934/91 (OJ 1994, 184), a board's decision apportioning costs constituted an absolute bar to the opposition division's considering afresh, let alone deciding upon, either the fact or the quantum of the apportionment, or their reviewing the reasons (*ratio decidendi*) for which the apportionment had been made. The board found that the purported decision of the opposition division on this point was in law a mere communication of the clear and immutable legal position brought about by the earlier decision of a final court of competent jurisdiction, namely, the technical board of appeal.

10.3. Binding effect in opposition proceedings after remittal to an examining division

A decision by a board of appeal on an appeal from an examining division decision is not binding in subsequent opposition proceedings or on appeals therefrom, having regard both to the EPC and to the principle of *res judicata* (T.26/93; T.167/93, OJ 1997, 229; T.694/01, OJ 1997, 229; T.2291/08; see also T.1853/16). The binding effect is also not restricted to cases where the composition of the board remained unchanged (T.436/95). Following T.167/93, the board in T.1099/06 pointed out that opposition proceedings are separate and distinct from examination proceedings and are characterised by the nature of the public interest. The legislative and procedural framework has quite clearly been designed to allow the public interest in challenging granted patents by opposition to take priority over any considerations of certainty or apparent consistency. The board pointed out that to the extent this principle is recognised in the law of the EPC, it is of extremely narrow scope and must meet the six criteria set out in T.167/93 (OJ 1997, 229) – the issue must have been (a) judicially determined; (b) in a final manner, (c) by a tribunal of competent jurisdiction; (d) where the issues of fact are the same; (e) the parties (or successors in title) are the same; and (f) the legal capacities of the parties are the same. Thus a decision in earlier examination appeal proceedings could not be *res judicata* in subsequent opposition appeal proceedings, the criteria (c), (e) and (f) not being satisfied.

10.4. Board of appeal bound in subsequent appeal proceedings following remittal

The problem of being bound by an earlier board of appeal decision where a case is remitted also arises in connection with a subsequent appeal against the ensuing decision.

In a number of decisions, the boards have observed that they are bound by their own initial decision if a second appeal relating to the same subject-matter is brought before them (a "self-binding" effect, known by the German term *Selbstbindung*). The binding effect of the initial decision extends to all further findings made by the board in so far as they were decisive for the outcome of that decision and the facts have not changed (T 961/18; see also T 1545/08). However, the board can be bound only in so far as the facts are the same and only in so far as its legal assessment in the initial decision itself went (T 2337/16). However, they are not so bound where the facts underlying the initial decision have changed (Art. 111(2) EPC 1973) (T 21/89; see also T 153/93 and T 1545/08). This is often based on the argument that that board of appeal decisions are final and without appeal, so that no EPO body – not even boards of appeal – can take a new decision on facts which have already been decided. In T 690/91 the argument was that the same binding effect applied to any subsequent appeal proceedings since, according to Art. 111(1) EPC 1973, the board might exercise the same power as was within the competence of the department which was responsible for the decision appealed.

See also T 720/93 for the extent to which a board considered itself bound by an earlier board of appeal decision in the same case. Although the claim pending before the board represented different facts from in the first proceedings since it was a different type of claim and contained a number of different features, the board found some findings of the first decision binding for the second proceedings.

The board in T 736/16 had to rule on a second appeal brought by the appellant on the basis that it had no longer been open to the opposition division to examine compliance with Art. 123(3) EPC because the board had already settled that matter in relation to the same request when ruling on its first appeal in T 1909/12. The board agreed that both the opposition division and it itself were bound under Art. 111(2) EPC by the ratio decidendi in its decision on the first appeal (and, indeed, by those in R 3/14, another earlier decision issued in the same case). However, since it had not explicitly referred to Art. 123(3) EPC in either in the order or the reasons for that decision, it first had to ascertain whether it could be clearly inferred from any parts of the reasons that it had indeed already decided that the appellant's request met the requirements in that article. It concluded that it had not done so.

In T 449/15 the board had to compare the subject-matter of respective claim 1 of the main request decided upon in T 449/13 and of auxiliary requests 4 and 5 pending before the board for consideration in the second appeal proceedings. The amendments only amounted to an inclusion of redundant linguistic additions and merely represented cosmetic changes without any effect on the scope of the claims. Therefore, the board concluded that the amendments undertaken did not alter the subject-matter claimed in substance compared to the subject-matter finally decided upon in T 449/13, or the facts on which said decision was based. Consequently, the finding that the claimed subject-

matter lacked an inventive step was *res judicata*. In this context, the board noted that there have also been other decisions in the jurisprudence of the boards of appeal in which the competent boards considered themselves as being prevented from deciding on an issue due to the principle of *res judicata*, even though the claims under consideration were not literally identical to the claims decided upon in the earlier decision (see e.g. T 1872/08, T 572/07, T 436/95).

On the binding effect of a final decision on the subject-matter of the parent application in proceedings relating to divisional applications, see chapter II.F.2.4.

10.5. Binding effect: remittal for the continuation of proceedings

Where a board of appeal issued a decision rejecting certain claimed subject-matter as not allowable and remitted the case for further prosecution in accordance with an auxiliary request, under Art. 111(2) EPC 1973, the examination for allowability of the rejected claimed subject-matter could not be re-opened, either by the examining division during its further prosecution of the case, or by the board of appeal in any subsequent appeal proceedings (T 79/89, OJ 1992, 283).

In the opposition proceedings following the remittal for continuation of the proceedings, an amendment of the patent claims could change the actual basis of an appeal decision. In such a case the binding effect of Art. 111(2) EPC 1973 no longer applied (T 27/94).

Art. 111(2) EPC 1973 stated unambiguously that the department of first instance and the board of appeal which was again concerned with the case were bound by the *ratio decidendi* of the remitting decision only "in so far as the facts are the same". The opposition division was thus not bound by the first decision if new claims were submitted which were not in conflict with the *ratio decidendi* of the decision (T 609/94).

10.6. Binding effect: remittal only for adaptation of the description

A decision remitting a case to the opposition division with the order to maintain a patent on the basis of amended claims is binding in the sense that neither the wording nor the patentability of those claims can be challenged again in subsequent EPO proceedings (T 843/91, OJ 1994, 832). The decision on the claims' patentability remains final even where the facts have changed (T 27/94). When the first board of appeal delivers its decision, the content and the text of the patent claims become *res judicata* and can no longer be amended in proceedings before the EPO (T 113/92). Only objections to the amendments made to the description by the opposition division can be examined on appeal (T 1063/92).

Remittal for the description to be amended does not render it possible for an opponent to challenge substantive patentability again by appealing the opposition division's decision after remittal, where a final decision has been taken on this and the scope of the patent (T 1063/92). Following T 843/91 (OJ 1994, 832), the board in T 153/93 found that all findings of fact that were a *conditio sine qua non* of the finally binding parts of the decision were *res judicata* with the result that new facts, evidence or arguments seeking to cast